

purpose of such inspection, i.e. obtaining patent information, to which the public was entitled in return for the exclusive monopoly rights that patents confer.

In T 851/18 of 12 April 2019, the board held that the request to exclude documents from file inspection was successful only in so far as the appellant (patent proprietor) had requested, in the alternative, that the documents in question be made available for inspection in anonymised form only. The board pointed out, however, that the appellant could not successfully invoke the EU General Data Protection Regulation (GDPR) as this was not binding on the European Patent Organisation. The applicable law was instead to be found in the Guidelines for the Protection of Personal Data in the EPO of 1 April 2014, together with Art. 1(2)(a) of the decision of the President of the EPO dated 12 July 2007 concerning documents excluded from file inspection (OJ SE 3/2007, 125) and the provisions in Art. 128(4) and R. 144(d) EPC on which that decision was based.

In T 2893/18 the board found that the fact that the contested documents were communicated to the other opponents was not in contradiction with their provisional exclusion from public inspection. The opposition division had at least provisionally excluded the contested documents from file inspection – as requested and as foreseen in the decision of the President of the EPO dated 12 July 2007 (OJ SE 3/2007, 125) – and examined their relevance for admission into the proceedings, their public availability and their exact influence on the patentability of the opposed patent before ultimately deciding on the issue of public file inspection.

1.2.2 Examples where file inspection was found not to be prejudicial to interests of appellant

In T 2254/08 the board decided that the inspection of documents that were marked confidential on filing but were publicly accessible on the internet was not prejudicial to the economic interests of the appellant (proprietor).

In T 1839/11 the board came to the conclusion that where a filed document contains information, some of which serves the purpose of informing the public about the patent but some of which does not, the filing of a version of the document in a form from which the latter information has been redacted may form the proper basis for an order excluding the unredacted document from file inspection under R. 144 EPC, the redacted version being open to file inspection.

In T 1150/13 the board agreed that details of the arrangement for providing instructions to a representative did not serve to inform the public about the application and that such information was not normally obtainable from a file. However, the board rejected the request for exclusion of a letter requesting the postponement of oral proceedings on the basis that the appellant had not argued why the publication of the letter would be prejudicial to its legitimate personal or economic interest, and the board did not consider that this would be the case.

1.2.3 Examples where documents were excluded from file inspection

In T 811/90 (OJ 1993, 728) the board ordered that documents that would not normally be excluded from public inspection pursuant to Art. 128(4) and R. 93(a) to (d) EPC 1973, but which were issued as an immediate consequence of a substantial procedural violation, be withdrawn from that part of the file available to public inspection. It was further ordered that the documents had to be returned to the filing party if it so requested. Similarly in T 516/89 (OJ 1992, 436), the board ordered that documents marked "confidential" which did not belong to classes of documents to be excluded from file inspection be returned to the party concerned without note being taken of their contents. See also T 760/89 (OJ 1994, 797).

In T 264/00 two internal documents, belonging respectively to the appellant and to the respondent and concerning the outcome of a confidential meeting between two of their employees, contained confidential information on the conception, manufacture and marketing of some of the respondent's products. The board held that the dissemination of this information might effectively be prejudicial to legitimate economic interests. In agreement with both parties, the board excluded the documents from file inspection pursuant to R. 93(d) EPC 1973.

In T 1401/05 of 20 September 2006 the board took the view that documents containing company-internal details could deprive the applicant and its domestic agent of valuable commercial assets, could be used by competitors to obtain a competitive edge over the appellant, and that a number of additional details could adversely affect the career opportunities of certain employees of the applicant and its domestic agent. It concluded that public inspection of essential parts of the documents would be prejudicial to legitimate economic interests of legal persons, and to legitimate personal and economic interests of natural persons. As the documents in question did not furnish patent information, the board excluded the relevant documents from file inspection.

In T 99/09 the document for which inspection had been requested contained precise technical details, particularly as to the source of the constituents of a medicinal product available on the market and certain specifications for the product's manufacture. Given the technical nature of the document, the board concluded that its disclosure might indeed be prejudicial to the appellant's economic interests. Since the respondents had not objected to or commented on the request to exclude the document from inspection, it was excluded under Art. 1(2)(a) of the EPO President's decision of 12 July 2007 (OJ SE 3/2007, 125) in the light of Art. 128(4) and R. 144(d) EPC.

In J 23/10 it could be gathered from the document in question that the applicant paid the renewal fees for certain applications for which they were not the registered applicant. These applications had been transferred to them but this had not been made public. It was still the assignor who was mentioned in the Register. In the Legal Board's view, this was information about internal relationships between the parties concerned, the publication of which could be prejudicial to their economic interests, while being irrelevant for the assessment of the patent application as such and therefore was to be excluded from file inspection.

In T.1201/10 of 20 May 2019, the request for re-establishment of rights contained information about the appellant's financial affairs. The board held that the appellant had a legitimate personal interest that this information was not made public. This request for re-establishment was itself not relevant to the decision in the case in hand.

In T.1534/16, during written proceedings before the board, a number of documents were filed by the appellant before it withdrew its opposition, which were provisionally excluded from file inspection at the request of the appellant (patentee). The board, considering that the opponent and intervener had explicitly agreed in writing to the appellant's request and being satisfied that the documents in question did not serve the purpose of informing the public about the patent in suit, concluded that the above-mentioned documents should remain excluded from file inspection pursuant to R.144(d) EPC.

2. European Patent Register

2.1. General

Art.127 and R.143 EPC (previously R.92 EPC 1973) govern entries in the European Patent Register. R.143 EPC gives a list of items that are to be entered in the Register, additional entries required being specified in the EPO President's decision dated 15 July 2014 concerning the information given in the European Patent Register, which was adopted under R.143(2) EPC. The Register shows the state of the proceedings and the legal status of patents rights. Entries are made in it until the end of the opposition period or of opposition proceedings, as appropriate. In J.12/16 the board held that, in view of the suspensive effect any appeal yet to be filed would have, entries potentially interfering with the outcome of the then resulting appeal proceedings should not be made in the Register while the period for appeal (here, against a decision refusing requests for registration of a transfer and for a stay of grant proceedings) was still pending.

According to J.5/79 (OJ 1980, 71), no entries can be made in the Register prior to publication of the European patent application (Art.127 EPC 1973 – unchanged in that respect).

An entry in the European Patent Register recording the withdrawal of a patent application fulfils the same function as a publication in the European Patent Bulletin in that it amounts to a notification to the public (J.25/03, OJ 2006, 395; see also J.14/04 and J.12/03). The withdrawal of an application cannot be retracted once it has been published in the European Patent Register (J.2/15).

In T.194/15 the board held that the entry of a change of an opponent's name in the European Patent Register does not establish a right, it merely records it (see also T.799/97).

Under Art.20 EPC in conjunction with the EPO President's decision dated 21 November 2013 concerning the responsibilities of the Legal Division (OJ 2013, 600), the Legal Division is usually responsible for decisions on entries and deletions in the European Patent Register (for exceptions – in cases where a request can

be granted directly – see EPO President's decision dated 21 November 2013 concerning the entrustment to non-legally qualified staff of certain duties incumbent on the Legal Division, OJ 2013, 601). Appeals against such decisions are a matter for the Legal Board of Appeal, not the technical boards (Art. 106(1) and Art. 21(2) EPC). The entitlement of the proprietor entered in the Register cannot be questioned in either opposition or appeal proceedings (see T.553/90, OJ 1993, 666).

2.2. Registration of licences

As to the recording in the Register of European Patents of an exclusive licence under a patent **already granted**, the Legal Board of Appeal ruled in its decisions J.17/91 (OJ 1994, 225) and J.19/91 that registration was no longer possible once the patent had been granted because the EPO had renounced jurisdiction in favour of the national offices of the contracting states designated in the request for grant.

2.3. Registration of transfers

Art. 72 EPC provides that an assignment of a European patent application must be made in writing and requires the signatures of the parties to the contract. Under R. 22 EPC, a transfer of a European patent application is recorded in the European Patent Register at the request of an interested party and on production of documents satisfying the EPO that the transfer has taken place. This is in line with the PCT system (R. 92bis.1 PCT).

In J.12/00 the Legal Board summarised the preconditions for registering a transfer of a European patent application (R. 20 EPC 1973; now R. 22 EPC) as follows: (i) a request of an interested party; (ii) the production of documents satisfying the EPO that the transfer has taken place; and (iii) the payment of an administrative fee. Documents relating merely to the obligation to transfer the right, but not to the transfer itself, were not sufficient to satisfy the EPO. Nor, according to the board, was it enough to cite registrations in different countries on the basis of documents other than assignment documents (similarly J.4/10).

In T.128/10 the board held that the three requirements under R. 22 EPC in conjunction with R. 85 EPC, as formulated in J.12/00, did not need to be fulfilled at the same time. If they were met on different dates, the transfer would only have effect vis-à-vis the EPO at the date on which all the requirements mentioned above were fulfilled.

In J.38/92 and J.39/92 the Legal Board of Appeal ruled that a transfer could only be recorded in the European Patent Register on the basis of an official document in accordance with R. 20(1) EPC 1973 if that document **directly** verified the transfer (similarly J.4/10). It did not suffice if a judgment was submitted which mentioned another document from which it was possible to verify the transfer.

In appeal proceedings, assessing whether there are documents satisfying the EPO that a transfer has taken place in accordance with R. 20(1) and (3) EPC 1973 and recording the transfer in the Register is a matter for the department of first instance responsible for making the entry in the Register. Accordingly, in appeal proceedings, substitution of another party for the original applicant is possible only once the relevant department of

first instance has made the entry or where there is clear-cut evidence of a transfer (**J 26/95**, OJ 1999, 668; see also **T 976/97**, **T 1751/07**). In **T 393/15** the board held that evidence of a transfer could not be regarded as clear-cut if the person carrying out the transfer had not been clearly authorised to do so (see also **T 581/14**).

A transfer can be recorded in the European Patent Register even after deemed withdrawal of a patent application, if it is still possible that restitutio is available and the successor in title has taken, together with his request for registering the transfer, procedural steps suitable for restoring the application (**J 10/93**, OJ 1997, 91).

In **J 17/12** the Legal Board held that the transfer of a European patent application may not be recorded in the European Patent Register at a time when proceedings for the grant of the application are stayed under **R 14(1) EPC**. There is nothing to stop the filing, during the suspension of grant proceedings, of a request to transfer the application, but no action will be taken on the request during the suspension. While the fact of the transfer may not be apparent from the Register, it will be apparent from an inspection of the public file, as will the decision to stay the grant proceedings itself.

In **J 17/14** the Legal Board decided that the reversal of a completed transfer in the Register was not necessarily justified simply because doubts subsequently arose as to whether the claimed succession had been satisfactorily proven. There were cases where it might be more appropriate to stay the grant or opposition proceedings in favour of the party originally registered.

3. Stay of proceedings under Rule 14(1) EPC

3.1. Rule 14(1) EPC

3.1.1 General

Under **R 14(1) EPC** (**R 13(1) EPC 1973**) the EPO must stay the proceedings for grant ex officio if a third party provides it with evidence (under the EPC 1973, 'proof') that he has instituted proceedings against the applicant seeking a decision within the meaning of **Art 61(1) EPC** (see **J 28/94**, OJ 1997, 400; **T 146/82**, OJ 1985, 267; **J 10/02**, **J 6/10**, **J 7/10**), unless the third party communicates to the EPO in writing his consent to the continuation of such proceedings, and unless the European patent application has been withdrawn or is deemed withdrawn (**T 146/82**, OJ 1985, 267; **J 28/94**, OJ 1997, 400). Suspension of proceedings during the period when the third party is seeking a judgement that he is entitled to the grant of the European patent has the objective of preserving the rights of the third party during the entitlement proceedings (**J 7/96**, OJ 1999, 443; **J 20/05**, **J 15/06**, **J 2/14**, **J 17/12**). A patent applicant who is not heard when grant proceedings are suspended at a third party's request pursuant to **R 13 EPC 1973** may still challenge the justification for that suspension (**J 28/94**, OJ 1997, 400).

In **J 14/19**, the Legal Board of Appeal summarised the previous case law as follows. A stay of grant proceedings takes effect immediately on the day the third party demonstrates that the requirements under **R 14(1) EPC** have been met (**J 9/12**); proceedings can also